

Court No. - 32

Case :- WRIT - C No. - 27509 of 2018

Petitioner :- Smt.Sunita Kalra

Respondent :- Paschimanchal Vidyut Vitran
Nigam Limited And 2 Others

Counsel for Petitioner :- Deepak Kumar Jaiswal,
Mohit Kumar

Counsel for Respondent :- Awadhesh Kumar
Saxena

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

This writ petition has been filed, interalia, for the following relief:

"(I) Issue a writ, order or direction in the nature of mandamus commanding the respondent no. 2- Executive Engineer to grant new/permanent electric connection of 2 K.W for commercial use (LMV-2) in the tenanted premises situate at Court Road, Opposite Civil Court, Kutchery, Saharanpur by passing order on the application dated 25.06.2018 submitted before the respondent no. 3 (Annexure Nos. 2 & 3)."

Perusal of the record shows that the petitioner is a tenant of the House/Shop No. 2C/2949/11, Court Road, Saharanpur and there is a dispute going on with the landlord, who has filed an application under Section 21 of the U.P. Act XIII of 1972 (in short "Act") for release of the tenanted shop.

Learned counsel for the petitioner has stated that temporary electric connection has already been granted to the petitioner but the permanent electric connection is being denied by the Electricity Department on the ground that there is a dispute going on between the landlord and tenant over the shop in question.

Heard learned counsel for the petitioner, leaned counsel appearing on behalf of the Electricity Department and perused the record.

Learned counsel appearing on behalf of the Electricity Department has drawn our attention to the Clause 4.4 of the U.P. Electricity Supply Code as well as Annexure 4.2 of the aforesaid Code with regard to filing of indemnity bond.

An application under Section 21 of the Rent Control Act is pending against the petitioner for release of the shop in question. Therefore, admittedly, the petitioner is a tenant of the shop in question and is entitled to obtain electricity connection in accordance with law.

Considering the facts and circumstances of the

case, the respondents authority is directed to consider and grant electricity connection to the petitioner subject to her making application in accordance with law and procedure prescribed in Uttar Pradesh Electricity Supply Code, 2005 and giving indemnity bond and fulfilling all other requirements as provided under the Code.

With the aforesaid observation, this writ petition is finally disposed of.

Order Date :- 14.8.2018
Arun